

A.Revathi vs The Inspector General Of Registration on 8 January, 2019

Equivalent citations: AIRONLINE 2019 MAD 22

Author: Pushpa Sathyanarayana

Bench: Pushpa Sathyanarayana

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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 08.01.2019

CORAM

THE HONOURABLE Mrs. JUSTICE PUSHPA SATHYANARAYANA

W.P.No.9343 of 2018

A.Revathi

.. Petitioner

Vs.

1. The Inspector General of Registration,
Mylapore,
Chennai-600 004.

2. The Registrar,
Office of Registrar of Marriage,
Chennai North (Joint-1),
Chennai.

3. R.Jagadeesan

.. Respondents

Prayer : Writ petition filed under Article 226 of the Constitution India praying for a Writ of Certiorarified Mandamus calling for the records of the first respondent in his letter No.6560/G2/2018, dated 14.02.2018 along with the records of the second respondent pertain to "Certificate of Marriage" registered under Sl.No.2986 of 2012, 12.09.2012 and to quash the same as illegal and direct the second respondent to delete, cancel and remove the same from the records the second respondent office.

For Petitioner : Ms.A.Arulmozhi

For Respondents : Mr.T.M.Pappiah,
Special Government Pleader for RR1

Served - No appearance for R3

ORDER

The communication of the first respondent in his letter No.6560/G2/2018, dated 14.02.2018 along with the records of the second respondent pertaining to "Certificate of Marriage" registered under Sl.No.2986 of 2012, dated 12.09.2012 is sought to be quashed by the petitioner contending that the same is illegal with a prayer to direct the second respondent to delete, cancel and remove the said certificate of marriage from his records.

2. The case of the petitioner is that the third respondent, who is a neighbour, under the guise of taking her to a temple along with friends, took her to the Sub Registrar Office, Royapuram, and made her to put signature to the registration of the marriage between them out of compulsion and after taking photographs only allowed her to return to her house. The petitioner further claimed that on 28.01.2016, the third respondent along with his parents and relatives came to her house and threatened her to come along with him. When it was denied by the elders, the third respondent produced the Marriage Certification claiming as if the marriage was solemnised on <http://www.judis.nic.in> 12.09.2012 at No.27-A, Nethaji Nagar, Tondiarpet, Chennai, whereas, the petitioner claimed that no such marriage was solemnised on the said date at the said place. Narrating the fraud played by the third respondent, the petitioner instituted a suit in O.S.No.50 of 2016 on the file of the District Munsif Court, Tambaram, seeking to declare that no marriage was solemnized between the petitioner and the third respondent and the same is pending. As an outburst, the third respondent filed a petition for restitution of conjugal rights in O.P.no.4624 of 2017 on the file of the I Additional Family Court, Chennai, which is also pending.

3. While so, the petitioner submitted a representation dated 05.02.2018 to the officials respondents to cancel the registration of marriage under Sl.No.2986 of 2012, dated 12.09.2012, on the file of the second respondent, which led to the passing of the impugned order by the first respondent. Hence, the present writ petition.

4. Heard the learned counsel for the petitioner and the learned Special Government Pleader appearing on behalf of the first and second respondents.

<http://www.judis.nic.in>

5. Despite service of notice, the third respondent neither appeared in person nor through any counsel.

6. A Division Bench of this Court, while dealing with Habeas Corpus Petitions concerning similar issue, in S.Balakrishnan Pandiyan and another v. The Superintendent of Police, Kanchipuram, and

others, (2014) 6 CTC 129, observed that “a marriage conducted in secrecy with few strangers around, be it Suyammariyathai form, will not amount to solemnization, as required under Section 7 and 7-A of the Hindu Marriage Act. The Division Bench disposed of those Habeas Corpus Petitions in the following manner :

“41. To sum up:

(a) Marriages performed in secrecy in the chambers of Advocates and Bar Association Rooms, will not amount to solemnisation and only women, who are victims of such marriage can question the same in matrimonial proceedings before the appropriate Court as a question of fact.

(b) No registration of marriage can be done under the Tamil Nadu Registration of Marriages Act, 2009 without the physical presence of the parties to the marriage before the Registrar, except under special circumstances after recording the reasons.

(c) If a Complaint is made by a party to the marriage to the Bar Council of Tamil Nadu and Puducherry against a Priest-

<http://www.judis.nic.in> cum-Advocate, the Bar Council shall take appropriate action in accordance with law.

(d) On Complaints lodged by the Registering Authorities seeking protection, the Police are directed to afford sufficient protection immediately."

7. The Division Bench took note of the number such mass registration of marriages, that were made in the office of the Marriage Registrar, Royapuram, for a certain period, while arriving at the above conclusions. It is to be stated that the Certificate of Marriage sought to be cancelled in this writ petition was issued by the Marriage Registrar, Royapuram.

8. If the facts narrated by the petitioner are tested with the touchstone of the directions issued by the Division Bench of this Court, certainly the petitioner is entitled to the prayer sought for in this writ petition. The deliberate non-appearance of the third respondent, despite service, cannot be lost sight. As the petitioner has already suffered a lot, her mental ordeal has to be put to an end at least now.

9. Under the aforesaid circumstances, this writ petition is allowed and the impugned order as well as the Certificate of Marriage registered under Sl.No.2986 of 2012, dated 12.09.2012 on the file of <http://www.judis.nic.in> PUSHPA SATHYANARAYANA, J.

gg the second respondent are set aside. Resultantly, the second respondent is directed to delete and remove the same from the Marriage records, as expeditiously, but not later than six weeks from the date of receipt of a copy of this order. No costs.

08.01.2019 Speaking / Non-speaking Order Index : Yes/No Internet : Yes gg To

1. The Inspector General of Registration, Mylapore, Chennai-600 004.
2. The Registrar, Office of Registrar of Marriage, Chennai North (Joint-1), Chennai.

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